

25STCV07903 25STCV07903

County: los-angeles

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Case Number: 25STCV07903 Hearing Date: July 29, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: July

29, 2026 TRIAL

DATE: July19, 2027

CASE: Stephen M. Villarreal v. American Honda Motor Co., Inc., et al.

CASE NO.: 25STCV07903

(1)

MOTION TO

COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES FROM PLAINTIFF STEPHEN VILLARREAL, AND REQUEST FOR MONETARY SANCTIONS

(2)

MOTION TO

COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES FROM PLAINTIFF STEPHEN VILLARREAL, AND REQUEST FOR MONETARY SANCTIONS

(3)

MOTION TO

COMPEL FURTHER RESPONSES TO REQUESTS FOR ADMISSION TO PLAINTIFF AND REQUEST FOR MONETARY SANCTIONS

(4)

MOTION TO

COMPEL FURTHER RESPONSES TO REQUESTS FOR PRODUCTION FROM PLAINTIFF STEPHEN VILLARREAL, AND REQUEST FOR MONETARY SANCTIONS

MOVING PARTY: (1)-(4)

Defendant American Honda Motor Co., Inc.

RESPONDING PARTY: (1)-(3) Plaintiff

Stephen M. Villarreal

(4)

None

I. BACKGROUND

In this lemon law action, Plaintiff Stephen M. Villarreal alleges (among other things) that Defendant American Honda Motor Co., Inc. ("Defendant") failed to replace or repair his 2019 Honda Civic after the vehicle started manifesting defects and nonconformities during the express warranty period.

On March 18, 2025, Plaintiff filed this action against Defendant and Does 1 through 10, inclusive, asserting causes of action for: (1) violation of subdivision (d) of Civil Code section 1793.2 ("Section 1793.2"); (2) violation of subdivision (b) of Section 1793.2; (3) violation of subdivision (a)(3) of Section 1793.2; (4) breach of the implied warranty of merchantability; and (5) fraudulent inducement – concealment.

On June 22 and June 23, 2026, Defendant filed the instant motions to compel Plaintiff to produce further responses to Requests for Admission (Set One) ("RFAs"), Request for Production of Documents (Set One) ("RFPs"), Form Interrogatories (Set One) ("FROGs"), and Special Interrogatories (Set One) ("SROGs"). The motions also seek sanctions against Plaintiffs and their attorney of record.

On July 13 and 16, 2026, Plaintiff filed oppositions to RFA, FROG, and SROG motions. Plaintiff has not opposed the RFP motion.

On July 22, 2026, Defendant filed one reply to the oppositions.

II. LEGAL STANDARD

On receipt of interrogatories, requests for production of documents, or requests for admissions, the requesting party may move for an order compelling a further response. (Code Civ. Proc., §§ 2030.300, subd. (a) [interrogatories]; 2031.310, subd. (a) [requests for production]; 2033.290, subd. (a) [requests for admission].)

III. DISCUSSION

A.

Timeliness

Motions to compel further responses to interrogatories, requests for production of documents, and requests for admission must be brought within 45 days of service of the verified response, supplemental verified response, or on a date to which the propounding and responding parties have agreed to in writing; otherwise, the propounding party waives the right to compel further responses. (Code Civ. Proc., §§ 2030.300, subd. (c); 2031.310, subd. (c); 2033.290, subd. (c).)

The parties have not disputed that the motions to compel further responses are timely.

B.

Separate Statement

Defendant has filed separate statements as required. (Cal. Rules of Court, rule 3.1345(a)(1), (2), and (3).)

C.

Meet and Confer

The motions must be accompanied by meet and confer declarations under Code of Civil Procedure section 2016.040, which requires: “A meet and confer declaration in support of a motion shall state facts showing a

reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion” (Code Civ. Proc., §§ 2016.040, subd. (a); 2030.300, subd. (b)(1); 2031.310, subd. (b)(2); 2033.290, subd. (b)(1).)

In his oppositions, Plaintiff argues that Defendant failed to meet and confer in good faith because it only sent a meet and confer letter demanding responses and failed to follow up on that request.

The Court finds that argument unpersuasive. According to the emails that Defendant has submitted, after defense counsel emailed the meet and confer letter, Plaintiff’s counsel promised to serve supplemental responses if granted an extension. (Motions, Declarations of Cassandra Tran (“Tran Decl.”), ¶¶ 6, 7; Exh. 4) Therefore, there was no reason for defense counsel to attempt to meet and confer with Plaintiff in person, by telephone, or by videoconference as required by Section 2016.040. Plaintiff, however, did not serve the responses by the promised date. Therefore, the Court will proceed on the merits.

D.

Request to

Compel Further Responses and for Sanctions

Plaintiff argues that the motions are moot because he subsequently served supplemental responses with verifications to follow before the hearing date.

In its reply, Defendant argues that Plaintiff has not served verifications for supplemental responses to Defendant’s RFPs and RFAs, and the supplemental responses to all discovery requests (i.e., the RFPs, RFAs, SROGs, and FROGs) contain improper objections and fail to substantively respond to the discovery requests.

A trial court retains the authority to hear a motion to compel further responses even if the responding party serves supplemental responses after the motion has been filed and before the hearing. (See e.g., *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 408–409 [“If a party provides an untimely interrogatory response that does not contain objections and that sets forth legally valid responses to each interrogatory,

the untimely response might completely or substantially resolve the issues raised by a motion to compel responses under section 2030.290. Even in such cases, however, the trial court retains the authority to hear the motion. [Citation.] Whether a particular response does satisfactorily resolve the issues raised by a motion is a matter best determined by the trial court in the exercise of its discretion, based on the circumstances of the case. In many cases involving untimely responses, the propounding party will take the motion off calendar or narrow its scope to the issue of sanctions. If the propounding party proceeds with the motion, however, the trial court has the discretion to rule on the motion. The trial court might compel responses without objection if it finds no legally valid responses have been provided to one or more interrogatories; it might deny the motion to compel responses as essentially unnecessary, in whole or in part, and just impose sanctions; it might treat the motion as one under section 2030.300 and either determine that further answers are required, or order the propounding party to 'meet and confer' (§ 2030.300, subd. (b)) and file a separate statement (Cal. Rules of Court, rule 3.1020(a)(2), (c)); or it might take the motion off calendar, thereby requiring the propounding party to file a motion under section 2030.300"].)

The Court grants Defendant's request to compel Plaintiff to serve further responses to the RFAs and RFPs because there is no evidence that Plaintiff has served verifications to those discovery requests. (*Appleton v. Superior Court* (1988) 206 Cal. App. 3d 632, 635-636 ["Unsworn responses are tantamount to no responses at all"].)

The Court denies as moot Defendant's request to compel Plaintiff to serve further responses to the SROGs and FROGs motions. Although Defendant argues that the supplemental responses are deficient, Defendant has not submitted a separate statement or provided information from which the Court can determine the sufficiency of those responses. In so ruling, however, the Court is not foreclosing any right Defendant may have to file a motion to compel further responses to the SROGs and FROGs based on the supplemental responses.

Defendant seeks sanctions of \$1,310 for the RFA motion, \$1,060 for the RFP motion, \$1,185 for the FROG motion, and \$1,060 for the SROG motion. Those amounts are based on defense counsel's hourly rate of \$250 per hour and include \$60 filing fees. (Tran Decl., ¶ 9.)

The Court finds it proper to impose sanctions on Plaintiff for failing to serve timely supplemental responses, thereby requiring Defendant to file these motions. However, the requested sanctions are excessive as only one reply paper was filed, and all four motions will be heard on the same date. Instead, the Court finds sanctions of \$560 per motion (i.e., 2 hours of defense counsel's time at \$250 per hour plus a \$60 filing fee) to be reasonable.

Therefore, the request for sanctions is granted but in the reduced amount of \$560 per motion for total sanctions of \$2,240 against Plaintiff.

IV. CONCLUSION

The motions to compel further responses are GRANTED IN PART and DENIED IN PART as follows.

The request to compel further, verified responses to Form Interrogatories (Set One) and Special Interrogatories (Set One) is GRANTED. Plaintiff is ordered to serve further, verified responses to those discovery requests within 30 days of this ruling.

The request to compel further responses to Requests for Admission (Set One) and Request for Production of Documents (Set One) is DENIED.

The request for sanctions against Plaintiff is GRANTED. Plaintiff is ordered to pay Defendant total sanctions of \$2,240.

Defendant
to give notice.

Dated: July 29, 2026

Hon. Brock T. Hammond

Judge of the Superior Court